

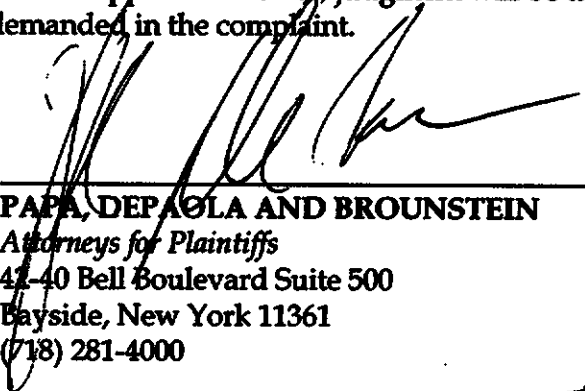
**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****JAMAL MCKAY,****Plaintiff,****-against-****THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER JOSE OCASIO OF THE 46th PCT.,
SHIELD #22703 AND P.O. OCASIO'S PARTNER
ON 1-7-11 UNDER DOCKET #2011BX001677
NAMED HEREIN AS JOHN/JANE DOE I,
Defendants**

Index No. _____

Purchased _____

Plaintiff designates
Bronx County as the place of trialThe basis of the venue is where the
tort arose**SUMMONS**Plaintiff resides at
JAMAL MCKAY
7873 County Place Drive
Tobyhanna, PA 18466**TO THE ABOVE NAMED DEFENDANT:**

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 10, 2012
PAPA, DEPAOLA AND BROUNSTEIN
Attorneys for Plaintiffs
41-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000**Defendants' Addresses:****CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007****NEW YORK CITY POLICE OFFICER
JOSE OCASIO OF THE 46th PCT., SHIELD #22703
2120 Ryer Avenue
Bronx, New York 10457**12 JAN 12 PM 2:31
COUNTY CLERK
BRONX COUNTY

RECEIVED

**P.O. OCASIO'S PARTNER ON 1-7-11 UNDER
DOCKET #2011BX001677, NAMED HEREIN
AS JOHN/JANE DOE I**
2120 Ryer Avenue
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

Purchased _____

-----X
JAMAL MCKAY,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER JOSE OCASIO OF THE 46th PCT.,
SHIELD #22703 AND P.O. OCASIO'S PARTNER ON
1-7-11 UNDER DOCKET #2011BX001677 NAMED
HEREIN AS JOHN/JANE DOE I,

Defendants-----

-----X

12 JAN 12 PM 2:31
COUNTY CLERK
BRONX COUNTY

RECEIVED

JAMAL MCKAY, by his attorneys, PAPA, DEPAOLA AND BROUNSTEIN,

respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff JAMAL MCKAY was a resident of Monroe County, City and State of Pennsylvania.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 17th day of March, 2011 and within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **NEW YORK CITY POLICE OFFICER JOSE OCASIO OF THE 46th PCT., SHIELD #22703 AND P.O. OCASIO'S PARTNER ON 1-7-11 UNDER DOCKET #2011BX001677 NAMED HEREIN AS JOHN/JANE DOE I**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about January 7, 2011, at approximately 12:35 A.M. in the vicinity of Jerome Avenue and Cross Bronx Expressway, County of Bronx, State of New York the Defendants jointly and severally in their capacity as probation officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **JAMAL MCKAY**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about January 7, 2011, at approximately 12:35 A.M. in the vicinity of Jerome Avenue and Cross Bronx Expressway, County of Bronx, State of New York the Defendants, jointly and severally did place Plaintiff **JAMAL MCKAY** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about January 7, 2011, at approximately 12:35 A.M. in the vicinity of Jerome Avenue and Cross Bronx Expressway, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as an inmate in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately four (4) days before he was released on his own recognizance. The Defendants intentionally confined

the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about January 7, 2011, at approximately 12:35 A.M. in the vicinity of Jerome Avenue and Cross Bronx Expressway, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as an inmate in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately four (4) days before he was released, when it was ascertained that the plaintiff had no outstanding warrants as he had told the defendants all along. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "13" as it set forth at length herein.
15. Defendants **NEW YORK CITY POLICE OFFICER JOSE OCASIO OF THE 46th PCT., SHIELD #22703 AND P.O. OCASIO'S PARTNER ON 1-7-**

11 UNDER DOCKET #2011BX001677 NAMED HEREIN AS JOHN/JANE DOE I, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

16. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
17. Plaintiff **JAMAL MCKAY** is and at all times relevant herein, a citizen of the United States and a resident of Monroe County in the State of Pennsylvania and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
18. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
19. On or about January 7, 2011 the Defendants, armed police, while effectuating the seizure of the Plaintiff **JAMAL MCKAY**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and unlawfully imprisoned without the Defendants possessing legal cause to do so. Further, the plaintiff was subjected to a warrantless strip search with cavity inspection even though the defendants did not possess a reasonable and/or probable cause to believe that the plaintiff had secreted contraband in or on his person.
20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:
 - a. Freedom from assault to his person;

- b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from unlawful imprisonment;
 - f. Freedom from the use of excessive force during the arrest process.
21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights used the fourth and fourteenth amendments of the United States Constitution.
22. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.
24. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
25. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the

consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
 1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
 4. An individual such as the plaintiff herein cannot be subjected to a strip search with cavity inspection unless the police possess legal cause and/or have a reasonable suspicion and/or probable cause that the plaintiff has secreted contraband in or on his person.
27. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.
29. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
January 10, 2012

Yours, etc.

PAPA, DEPAOLA AND BROUNSTEIN

BY: **JOHN R. DEPAOLA**
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No. _____

Purchased _____

-----X
JAMAL MCKAY,

Plaintiff,

VERIFICATION

-against-

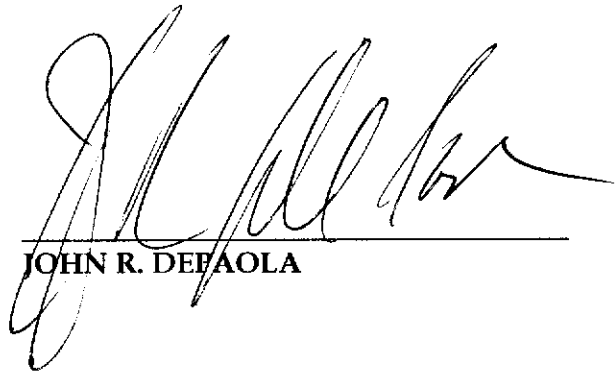
**THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER JOSE OCASIO OF THE 46th PCT.,
SHIELD #22703 AND P.O. OCASIO'S PARTNER
ON 1-7-11 UNDER DOCKET #2011BX001677
NAMED HEREIN AS JOHN/JANE DOE I,
Defendants**

-----X

I, **JOHN R. DEPAOLA**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **PAPA, DEPAOLA AND BROUNSTEIN**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 10, 2012



JOHN R. DEPAOLA

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JAMAL MCKAY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOSE OCASIO OF THE 46th
PCT., SHIELD #22703 AND P.O. OCASIO'S PARTNER ON 1-7-11 UNDER DOCKET
#2011BX001677 NAMED HEREIN AS JOHN/JANE DOE I

Defendants

SUMMONS AND VERIFIED COMPLAINT

PAPA DEPAOLA AND BROUNSTEIN

BY: JOHN R. DEPAOLA

Attorney for Plaintiffs

42-40 Bell Boulevard

Bayside, NY 11361

Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for